

TACC, not the 4th ACC. “Because there is but one complaint in a civil action, the filing of an amended complaint moots a motion directed to a prior complaint.” (*S.C. v. Doe 1* (2025) 115 Cal.App.5th 365, 384.) Once a pleading has been superseded, the court may not sustain a demurrer or grant summary adjudication on a cause of action contained in a previous complaint. (*JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477.) The party seeking summary adjudication must file a subsequent motion or renew the earlier motion if appropriate. (*Ibid.*) The issue of FNS’s failure to plead damages in the 4thACC is properly addressed at the hearing on the demurrer.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2203789	PROTECTIVE INSURANCE COMPANY vs FNS TRANSPORT INC.	MOTION FOR JUDGMENT ON THE PLEADINGS ON 3RD AMENDED CROSS-COMPLAINT

Tentative Ruling:

DENY as moot.

The Motion for Judgment on the Pleadings (MJOP) is to the TACC. For the reasons stated above, the Motion is denied without prejudice as moot.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504760	BARRAGAN vs GUZMAN	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling:

GRANT

The dismissal of Defendant Donald Mckinnon on 5/1/2026 is set aside.

Matter is set for an OSC Re: Dismissal for Failure to provide proof of service on Donald McKinnon, to be heard on: 9/21/2026, at 8:30am, D-4.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2505886	CINEMATIC CAPITAL CORP., vs WILLIAMS	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The hearing on the demurrer is ordered continued to 10/21/2026, at 8:30am, D-4. The parties are ordered to further meet and confer regarding the demurrer.

Here, the meet and confer efforts were inadequate. CCP § 431.41 requires that the parties meet and confer **via telephone, videoconferencing or in person** before the demurrer is filed. Counsel for moving Defendant declares that he sent a letter via email to Plaintiff's counsel outlining the alleged deficiencies in the Complaint, to which Plaintiff's counsel failed to respond. This is insufficient meet and confer.

Moving Defendant shall, at least 15 days before the continued hearing date, file a supplemental declaration stating the means by which the parties met and conferred, and identifying the remaining issues that the parties were unable to resolve.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2600240	PIGG vs NORTH AMERICAN SAVINGS BANK, F.S.B.	MOTION TO VACATE JUDGMENT OF DISMISSAL ENTERED IN FAVOR OF NORTH AMERICAN SAVINGS BANK, F.S.B. AND FOR LEAVE TO FILE THE PROPOSED SECOND AMENDED COMPLAINT

Tentative Ruling:

DENY

Plaintiff alleges no ground for vacating the judgment. Plaintiff instead relies on proposed amendments to the complaint, but once judgment has been rendered, a plaintiff cannot amend her complaint unless the judgment is first vacated. Here, Plaintiff fails to show how the proposed amendments would cure the defects.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2602524	BERNIE'S MEATS LLC vs RINCON AMEZCUA	DEMURRER ON COMPLAINT

Tentative Ruling:

SUSTAIN the demurrer with 30 days leave to amend.

Breach of Duty of Loyalty

Plaintiff fails to allege how Rincon Amezcua breached the duty during his employment. Plaintiff only alleges that La Fe was formed while Defendant was still employed by Plaintiff—he does not allege that Defendant actually formed or worked for La Fe during his employment.